

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

202200567110CUCO: VALA ZARRABIAN vs. CHRISTOPHER GARNER

06/25/2026 in Department 20

Motion for Summary Adjudication

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

The Court allows appearances by CourtCall and Zoom. If appearing by CourtCall, call in no later than 8:20 a.m. If you wish to appear by CourtCall, you must make arrangements with CourtCall by 4:00 p.m. the court day before your scheduled hearing. Requests for approval of a CourtCall appearance made on the morning of the hearing will not be granted. No exceptions will be made.

For Zoom appearances, all counsel appearing by Zoom must email the court at Courtroom20@ventura.courts.ca.gov with a simultaneous copy to all other counsel/self-represented parties no later than 3:00 p.m. the court day before the hearing. INCLUDE THE PHRASE "ZOOM APPEARANCE ON (DATE OF HEARING)" IN THE SUBJECT LINE OF YOUR EMAIL. The email must identify the person who will make the appearance. You will receive the login information for your appearance in reply to your email. If appearing by Zoom, log into the hearing no later than 8:20 a.m. The Court will transfer you to the meeting room when the calendar begins. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name. IF YOU DO NOT FOLLOW ALL OF THESE INSTRUCTIONS, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Christopher Garner's ("Defendant") Motion for Summary Adjudication of Plaintiff's First Cause of Action for Equitable Lien

Tentative: Defendant's Motion for Summary Adjudication is DENIED. There is a triable issue of material fact as to whether Defendant orally agreed with Plaintiff that he would add her on title to the Property if she funded renovations and paid the recurring mortgage obligation on the Property. (UMF No. 7.) If there was such an oral agreement, Defendant has not carried his burden of persuasion or production to make a prima facie showing that there is no triable issue of material fact.

Plaintiff shall provide notice.

Background

In the operative, verified, First Amended Complaint (“FAC”), Plaintiff alleges she and Defendant were in a three-year romantic relationship during which time they became engaged and Plaintiff moved into Defendant’s home, shared many assets with him, and had a child with him. (FAC ¶¶ 1, lines 19-21; 7.) Defendant assured Plaintiff that he would place her on title of Defendant’s and his mother’s home at 461 Raindance Street, Thousand Oaks (the “Property”) if she funded renovations and contributed to mortgage payments and related costs. She relied on this promise and spent nearly \$134,000 on home improvements and \$76,000 on house bills, mortgage payments, and utilities. Defendant failed to add her to the Property’s title and has unjustly retained the benefits of Plaintiff’s substantial improvements to the Property. Plaintiff seeks an order granting her an equitable lien on the Property. (FAC ¶ 1, lines 23-27; ¶ 3, lines 11-14; ¶¶ 8-10, ¶¶ 20-25; Prayer ¶ 1.)

Defendant’s Motion

Defendant’s motion for summary judgment is premised on the assertion that (1) the alleged oral promise to place Plaintiff on title or to make the property security for her expenditures is barred by the statute of frauds and no recognized exception applies; and (2) Plaintiff has no competent evidence of damages. (Notice of Motion, p. 2:8-15.)

Legal Standards on Summary Judgment

The legal standards on summary judgment are well established and they are not repeated here.

Objections

The following evidentiary objections by Defendant are OVERRULED: 1, 2 (overruled as to paragraphs 39-42), 4 (See Cal. Rule of Court, rule 3.1354, subd. (b).)

The following evidentiary objections by Defendant are SUSTAINED: 2 (sustained as to paragraphs 43, 44 (Evid. Code §§ 210, 350, 352)), 3 (§310)

Material Facts

For the limited purpose of ruling on this motion, the Court makes the following findings regarding Defendant’s Undisputed Material Facts (“UMF”):

Defendant’s Material Facts Which are Undisputed and Established

1, 4, 6, 9-13, 15-18, 20 (not established by cited evidence but undisputed), 21-22

Defendant’s Material Facts Which are Disputed and Established

7 (established only that Defendant did not enter into a written agreement with Plaintiff to place her on title or to convey ownership interest in the property to her), 8, 14

Defendant's Material Facts Which are Disputed and Not Established

5, 7 (disputed that Defendant did not enter into an oral agreement with Plaintiff to place her on title or to convey ownership interest in the Property to her), 19

Defendant's UMF Nos. 2 and 3 are not material facts.

Ruling on the Motion

The pleadings define the scope of the issues on a motion for summary adjudication. (*Vulk v. State Farm Gen. Ins. Co.* (2021) 69 Cal.App.5th 243, 255; *Port Med Wellness, Inc. v. Connecticut Gen. Life Ins. Co.* (2018) 24 Cal.App.5th 153, 169.) Because a motion for summary adjudication is limited to the issues raised by the pleadings (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 476-477), all evidence submitted in support of, or in opposition to, the motion must be addressed to the claims and defenses raised in the pleadings. (See *Whelihan v. Espinoza* (2003) 110 Cal.App.4th 1566, 1576 [summary judgment cannot be opposed on theory not pleaded].) On a defendant's motion for summary judgment, the defendant need address only the issues raised by the complaint; the plaintiff cannot raise new, unpleaded issues in the plaintiff's opposition to the motion or successfully resist the motion based on allegations that are not contained in the complaint. (*William Jefferson & Co., Inc. v. Orange County Assessment Appeals Bd. No. 2* (2014) 228 Cal.App.4th 1, 6.) Whether a disputed fact is "material" is determined by the pleadings, the rules of pleading, and the substantive law applicable to the legal theories put in issue by the pleadings. (*Joseph E. DiLoreto, Inc. v. O'Neill* (1991) 1 Cal.App.4th 149, 156.)

As noted above, the allegations of the verified FAC are that (1) Defendant promised Plaintiff that if she invested and paid for substantial improvements and mortgage payments for the Property, Defendant would put Plaintiff's name on the title to the Property; (2) Plaintiff relied on that promise and put substantial funds toward home improvements, bills, and mortgage payments; (3) Defendant received the benefits of this investment and these improvements; (4) in failing to add Plaintiff's name to the title, Defendant has unjustly retained the benefits of Plaintiff's investments; and Plaintiff is therefore entitled to an order granting Plaintiff an equitable lien on the Property. The Court does not consider for purposes of summary judgment, Plaintiff's allegations that Defendant promised to reimburse her when the Property was sold or rented. (See Opp. p. 2, lines 18-19.)

The established facts are as follows:

Plaintiff understood Defendant to be the owner of the property and understood that title records are publicly available but did not verify title and did not name Cathy Garner as a defendant in this action. (UMF Nos. 4, 6, 9-11.) There is no written agreement with Plaintiff to place her on title to the Property or convey any ownership in the property to her. (UMF Nos. 7-8.) Plaintiff did not pay rent while she lived at the Property, but paid more than ten mortgage payments although she did not insist she be placed on title before she made these payments. (UMF Nos. 12-14.) Plaintiff agreed to provide financial information for the refinance of the property but did not ask to see the refinance documents and understood her name was not on the mortgage. (UMF Nos. 15-17.) Remodel work was completed but Plaintiff does not know whether the home was thereafter

appraised. (UMF No. 18.) Plaintiff bases her claimed home-improvement damages on dollar for dollar expenditures, not on appraisal, or before and after valuation of the property. (UMF No. 20.) She does not account for permits (or lack thereof) or for depreciation, appreciation or actual value added to the property. (UMF Nos. 21-22.)

The Court agrees that an alleged oral agreement to convey an interest in the Property to Plaintiff by placing her on title is unenforceable under the statute of frauds. (Civ. Code § 1624.) However, Plaintiff is not seeking specific performance. She is not seeking to be placed on title. She is seeking the remedy of an equitable lien on the Property to prevent Defendant's unjust retention of the benefits of Plaintiff's substantial investments made in reliance on Defendant's promise. (FAC ¶¶ 24, 25; Prayer, ¶ 1.)

“An equitable lien is a right to subject property not in the possession of the lienor to the payment of a debt as a charge against that property. [Citation.] It may arise from a contract which reveals an intent to charge particular property with a debt or ‘out of general considerations of right and justice as applied to the relations of the parties and the circumstances of their dealings.’ [Citation.] ‘The basis of equitable liens is variously placed on the doctrines of estoppel, or unjust enrichment, or on the principle that a person having obtained an estate of another ought not in conscience to keep it as between them; and frequently it is based on the equitable maxim that equity will deem as done that which ought to be done, or that he who seeks the aid of equity must himself do equity.’ [Citation.]” (*Campbell v. Superior Ct.*, (2005) 132 Cal.App.4th 904, 912, citing to *Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 453.) While a contractual relationship may play a role in the imposition of an equitable lien, such a lien is not created by contract, express or implied. (*Cnty. of Los Angeles v. Constr. Laborers Tr. Funds for S. California Admin. Co.* (2006) 137 Cal. App.4th 410, 416.) “A general doctrine of equity permits imposition of an equitable lien where the claimant's expenditure has benefited another's property under circumstances entitling the claimant to restitution. [Citations] . . . It is necessary that the lien claimant's money be spent upon the expected security of the property against which the lien is sought. [Citation.]” (See *Jones v. Sacramento Sav. & Loan Ass'n.* (1967) 248 Cal.App.2d 522, 530.)

In moving for summary judgment, a defendant can present evidence that conclusively negates an element of the plaintiff's cause of action or alternatively, may present evidence “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.) The moving party bears the burden of persuasion that there is no triable issue of material fact and must make a prima facie showing of the nonexistence of any triable issue of material fact. (*Id.* at 850.) Plaintiff has no burden until Defendant causes a shift by meeting his burden.

The evidence presented by Defendant does not conclusively negate the necessary elements for the imposition of an equitable lien. Whether Defendant orally agreed with Plaintiff that he would put her on title to the Property if she funded the renovations and paid the mortgage payments is a disputed material fact. (UMF No. 7.) That, in itself, is grounds to deny Defendant's motion because if there was an oral agreement, Defendant has not established that he should not be estopped from asserting the statute of frauds as a defense. (See, *Byrne v. Laura* (1997) 52 Cal. App. 4th 1054, 1068–69.) He has not established that Plaintiff did not seriously change her position by spending nearly \$134,000.00 on home improvements in reliance on the alleged oral agreement. He has not established that Plaintiff's contributions to the property do not deserve the protection of a court of

equity. Finally, he has not established that he has not been benefited by Plaintiff's monetary contributions to the Property. (See generally *Cnty. of Los Angeles v. Constr. Laborers Tr. Funds for S. California Admin. Co.* (2006) 137 Cal.App.4th 410, 415.)

To the extent Defendant contends that Plaintiff "does not possess, and cannot reasonably obtain, needed evidence" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855), the Court is not persuaded. It is not enough for a defendant to show merely that plaintiff "has no evidence" on a key element of plaintiff's claim. A defendant must also produce evidence showing plaintiff cannot reasonably obtain evidence to support that claim. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.) Evidence that a defendant propounded sufficiently comprehensive discovery requests and that the plaintiff provided factually insufficient responses raises an inference that the plaintiff cannot prove causation, which shifts the burden of production on the issue of causation to the plaintiff. (*Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 589-91, 595.)

Here, Defendant argues that Plaintiff cannot establish competent evidence of damages because in her January 2026 deposition she stated she was seeking dollar for dollar reimbursement of what she spent. He argues that this is not the proper measure of damages. However, this is insufficient to establish Plaintiff either does not have or cannot reasonably obtain evidence to support her claim for damages. Likewise, it is insufficient to argue, without citation to evidence, that Plaintiff cannot show that she would suffer an unconscionable injury from not being reimbursed for her expenditures. (Opp. 11, lines 10-16.) Because Defendant has not met his burden to either conclusively negate an element of Plaintiff's first cause of action or to establish that Plaintiff cannot reasonably obtain needed evidence to support that cause of action, the burden of production on the first cause of action is not shifted to Plaintiff.

For all of the above reasons, the Court DENIES the motion for summary adjudication.

Plaintiff shall give notice.